IN THE COUNTY COURT AT LINCOLN

Claim number: 019JE538

BETWEEN:

MSEM UK LTD (Claimant)

and

FISHBONE CONSTRUCTION LTD (Defendant and Claimant on the counterclaim)

WITNESS STATEMENT OF MINDAUGAS GAUDIESIUS

Managing Director of the Defendant

1. I am Mindaugas Gaudiesius, Managing Director of Fishbone Construction Ltd, the Defendant and Claimant on the counterclaim ("Fishbone"). I make this statement from my own knowledge. Where I was told something by someone else, I say who told me.

Background

2. Fishbone is a labour supply company. We have worked with Macdonald Joinery & Construction Ltd ("Macdonald Joinery") for about 13 years. I deal mostly with its owner, David Macdonald, and mostly by telephone.

3. On the BBC Cardiff toilet refurbishment project at BBC Central Square (our reference FC2520), Macdonald Joinery was the main contractor and Fishbone was its subcontractor. Before 26 November 2025, Macdonald Joinery asked me by telephone that Fishbone take over the site management of the project. On 24 November 2025 Andrew Macdonald of Macdonald Joinery wrote that works would start on Monday 1 December 2025 and that its "Site Managers" for the pre-start meeting on 26 November would be Mr Davidans and me (exhibit MG11). [CONFIRM: you accept you were named as a site manager; paragraph 9 says what your role was.]

4. I had known Mr Mikheil Davidans for a long time. He had worked for Fishbone on other sites before, and invoiced Fishbone through his company, MSEM UK Ltd. I offered him the site manager role on this project personally. The agreement was verbal, at £300 a day. There was no written agreement, and no fixed end date for his own engagement was agreed.

5. When I received his first invoice for this project, he had included fuel and accommodation. I spoke to him and agreed to pay them. I knew that he left the site around noon every Friday to travel home. In the same conversation I agreed to pay a full day for Fridays on one condition: that all the works were completed on schedule. That condition applied only to the Friday full days. It was not put in writing.

6. The draft programme dated 19 November 2025 produced for Macdonald Joinery, which Mr Davidans had, shows a snagging meeting on Monday 9 February 2026 and handover on Friday 13 February 2026 (exhibit MG2). On 4 February 2026 Dave Newell of J4 Projects, the project manager on the programme, asked Macdonald Joinery and the client by email whether "Thursday next week" suited for a "final site meeting for the WCs". On 6 February David Macdonald forwarded that email to me with the words "Please see date for snag and handover of the toilets", and I replied the same day: "Yes, Thursday perfect" (exhibit MG12). Thursday was 12 February 2026. [CONFIRM: v0.7 said J4 told you this by telephone and that it was not in writing. The emails show it was in writing. Say whether there was also a telephone call from J4, and whether you know the 9 February meeting was cancelled or simply replaced by the 12 February meeting. Delete this note once decided.] Works started on Monday 1 December 2025, and Mr Davidans was on site that morning carrying out inductions (exhibit MG11).

7. Fishbone supplied the labour. Two carpenters, I. Bulakevych and R. Drulit, were provided to Fishbone through Torin Construction Ltd, and Raitis Bikovs worked as a Fishbone subcontractor, mainly on the Roath Lock kitchens; he worked at Central Square on Wednesday 11 February and on Monday 16 February 2026. [CONFIRM from his emails; see the note below.] Fishbone chose and paid for all of them. Mr Davidans, as site manager, directed them on site (exhibit MG4).

8. On his first day on site, I agreed with him that every day he would send me photographs of the progress and photographs of the site sign-in register, so that I could check who was on site. He did this through a Telegram group chat for the project, which I created on 1 December 2025. This is how Fishbone runs its projects: I set up a Telegram group for each one. The register photographs he sent run from 2 December 2025 to 6 February 2026 (exhibit MG1).

9. In December 2025 I was the site manager at the Roath Lock project and Mr Davidans was the site manager at Central Square. In the first working week of January 2026, Macdonald Joinery told me by telephone that they were unhappy with the costs and that one site manager was enough to cover five operatives across the two sites. I therefore left Mr Davidans as site manager on both sites. On 7 January 2026 Liam Price of EMCOR, the client's project manager, wrote to Macdonald Joinery, copying me, that he had been told Mr Davidans was managing both sites and that he needed a site manager at both projects at all times. On 12 January 2026 Andrew Macdonald confirmed that Oleksii Starovoitov was on site at Roath Lock as an English-speaking working foreman (exhibit MG13). Mr Davidans spent most of his time at Central Square, and went to check progress at Roath Lock only when I asked him. [CONFIRM: that you said this to Mr Davidans and when. If Mr Starovoitov took over the Roath Lock foreman role on 12 January, say so here. On 21 January you wrote to Macdonald that "Mikheil and Alex every morning will have little

meetings with FM"; add if wanted, as it shows you told Mr Davidans to brief the facilities team.]

February 2026

9A. On 2 February 2026 Andrejus Prutkovas and I drove to Cardiff in Fishbone's van NJ17CYK and visited the Central Square site. [CONFIRM: what time you arrived; whom you saw; whether Mr Davidans walked you round; what the state of the works was; what he showed or told you, including anything about gaps, silicone, panels or labour; what you said to him; whether you offered labour; how long you stayed; whether you also went to Roath Lock. Say why you went. Mr Davidans says you attended "briefly" about a project vehicle (his para 33) and puts a visit and café meeting on 9 and 10 February (his paras 42-45). Your Chronology of 15 May put the visit on 9 February. Keep this paragraph to what you remember. Renumber later paragraphs when final.] We returned to Newcastle on 3 February.

10. On or about 30 January 2026 there was a pre-handover meeting at the site. I did not attend it. Attending site meetings was part of Mr Davidans's duties as site manager. The same day, after the meeting, Mr Davidans telephoned me. He said he needed to finish the works and that he would be ready for handover. He did not say which works. He did not tell me about any defects or snagging items, and he did not ask for more labour or help.

11. The photographs Mr Davidans sent me did not show the defects found later. They showed that the panels had still not been installed. I looked at them at the time and it did not look like a big job. I asked Mr Davidans whether he was in a position to finish, and he said yes.

12. On Thursday 5 February 2026 I telephoned Mr Davidans at 09:01 (exhibit MG6). From my experience I thought it was better to have spare hands in the week of the handover, so I asked him whether he needed any spare labour. He told me he was in control. I also asked him whether he was working the coming weekend, the last weekend before handover. He told me he was not working and that there was no reason to, because everything would be completed, and not to worry. He did not ask for more help and did not tell me that there was a problem.

13. The BBC Wales buildings at Central Square and at Roath Lock are both open at weekends. Most testing and decommissioning work in these buildings is done at weekends, when they are emptier than on weekdays. The draft programme itself shows testing and commissioning starting on Saturday 7 February 2026 (MG2).

14. On 10 February 2026 Mr Davidans sent me a video and an image on WhatsApp of a damaged panel and asked whether I could get a replacement. The label on the panel was a colour reference. I replied that we did not have one and that I would try to find one. That was the only problem he raised with me in writing. At 13:03 that day I telephoned him about the panel. After that call he sent a photograph of the panel label at 13:35 (exhibit MG5).

15. On 3 February 2026 Dainius Drulia, an experienced site manager, started as site manager on a new Fishbone project at BBC Roath Lock (FC2602, BBC Roath Lock Toilets upgrade). Roath Lock is about a 20-minute drive from the Central Square project. Fishbone arranged for Mr Drulia to help at Central Square with the handover, and he worked there from 12 to 15 February 2026. [CONFIRM with Mr Drulia: Mr Davidans says "Danila" started at Central Square on 11 February.] Sebastian Pabis, who had been working for Fishbone in Guernsey, crossed to Portsmouth on 12 February and started work at Central Square on or after 13 February. [CONFIRM the date he first arrived in Cardiff and what he did between 6 and 12 February.]

16. On 12 February 2026 the handover meeting took place. I was not there. I know about it from emails and WhatsApp messages from David Macdonald. At 15:11 that day Dave Newell of j4projects, copying the architects, emailed David Macdonald and Liam Price of EMCOR a list of 16 snagging items "following the snagging meeting today" and wrote: "We will need to delay handover until items 1-16 are complete." David Macdonald forwarded it to me at 15:32 with the words "This is just the start of it." (exhibit MG7). The list includes: cubicles set out from the back wall and the floor set out from the front wall; white shiny silicone to be replaced with matt; panels to be aligned; shadow gaps above the panels to be made good; bubbles on the cubicle doors; and damaged edges. As additional or to-follow items it lists fitting the sign, door stops, five handles and grey seats.

17. On 13 February 2026 I took part in a Teams meeting called by Dave Newell, with Liam Price of EMCOR and David Macdonald, about the snagging and how and when it would be finished. The invitation was sent to me at 11:47 that morning for 14:00 to 14:30 (exhibit MG14). I took part on my way to Cardiff. I arrived in Cardiff that night, and I was not on site on 13 February. [CONFIRM: that you joined at 14:00, where you were travelling from, and why Andrejus Prutkovas had a room booked at Travelodge London Kings Cross for the night of 13 February.]

18. The sign was not available to fit. On 19 February 2026 David Macdonald wrote that it was "not sent to site as yet", and Andrew Macdonald wrote that it was being finished and should be on site early the following week. On 23 February 2026 David Macdonald asked that the main toilets be completed for the Wednesday (exhibit MG8).

19. On 14 February 2026 I went to the site with Andrejus Prutkovas and planned with Mr Drulia and Mr Pabis how to rectify the works. Mr Drulia and Mr Pabis told me that Mr Davidans had left the site and, in their words, had finished his ten-week project. Those were their words. They also told me that he had been on site on 13 February and had left that day. [CONFIRM: which of them told you each thing. "Around noon" is removed: Mr Davidans's own emails of 12:57, 13:38 and 16:05 on 13 February, and his booking of parking for Mr Pabis from 13:00, suggest he was still working that afternoon, and Mr Pabis only arrived from Guernsey after 12 February. Ask Mr Drulia and Mr Pabis for what they saw themselves.]

After he left

20. Mr Davidans did not tell me he was leaving, and I did not tell him to leave or to go home. [CONFIRM: his own phone bill (MD14) shows no call from his phone to yours or to Andrejus's on 13 February. Check your outgoing calls and Andrejus's for 12 and 13 February before you sign this sentence.] On 18 February 2026 I asked him by WhatsApp where the toilet signage was. He did not reply. [CONFIRM: his phone bill shows a one-minute call from his phone to yours at 14:24 that day. Say whether you spoke.] On 22 February he messaged to ask when he would be paid. On 23 February I replied that Fishbone's payment was held until handover. On 27 February he asked again, and I replied that we would hand over on the Monday and then call to discuss how to close the matter. He replied "Ok, thanks." (exhibit MG5, with a translation of the Russian messages).

The invoices

21. MSEM invoiced Fishbone weekly. Invoice 552 was paid on 13 February 2026. Invoice 553 dated 8 February 2026 for £1,898 and invoice 554 dated 15 February 2026 for £1,891 are unpaid (exhibit MG3). I accept that Mr Davidans worked on site on the days in invoice 553, 2 to 6 February 2026, and on the days in invoice 554, 9 to 13 February 2026. I have no site register for 9 to 13 February. I was told on 14 February that he left site on Friday 13 February. On other Fridays he left around noon, as I say in paragraph 5.

22. Fishbone has withheld both invoices because of the defects in the work and the cost of putting them right. I disputed the invoices in writing on 18 March 2026 (exhibit MG9). [CONFIRM: whether any photographs, reports or invoices were sent to MSEM after Egita Davidane asked for them on 18 and 27 March 2026. He says none were.]

The counterclaim

23. From 13 February to 1 March 2026 Fishbone paid for labour and materials to put right the work at Central Square. The costs are (exhibit MG10): Snag Doctor £530.00; Anton Kogut £1,400.00 (£600.00 for 13, 14 and 15 February, and £800.00 for 16, 20, 21 and 22 February); Dainius Drulia £2,300.00 (Central Square days only, from 13 February; his day on 12 February is not claimed); Sebastian Pabis £3,730.69; Raitis Bikovs £112.50 (overtime at Central Square on Monday 16 February 2026); and Oleksii Starovoitov £308.75 (Monday 16 February, one day at £190 and five extra hours at £23.75). The total is £8,381.94 before VAT and CIS. All the bills have been paid from Fishbone's bank account: those of Snag Doctor, Mr Kogut, Mr Bikovs and Mr Starovoitov, and Mr Drulia's bills for the weeks ending 22 February and 1 March (paid on 6 and 13 March 2026). Mr Drulia's bill for the week ending 15 February was settled from an advance of £3,000 that he asked for and that Fishbone paid to him on 22 November 2025; £1,250 of the same advance was deducted from his bill for the week ending 22 February (exhibit MG10). Mr Pabis is not a subcontractor. He is employed by Fishbone on a fixed weekly wage, paid through payroll every week, including 13 February to 20 March 2026 (exhibit MG10). He

worked 14 days and 3 hours at Central Square from 13 February to 1 March 2026. The cost to Fishbone of those days is his wages for them, £3,220.00, plus employer's National Insurance of £414.10 and employer's pension contribution of £96.59, which I have confirmed from his payslips: £3,730.69 in all. Mr Kogut's invoice dated 24 February 2026 says it is for January. That is a mistake: the dates are in February.

24. Fishbone's counterclaim is for £7,997.25, as stated in its Defence and Counterclaim. If the Claimant's claim of £3,031.20 (invoices 553 and 554 after CIS) were allowed, the net amount of the counterclaim would be £4,966.05.

Statement of truth

I believe that the facts stated in this witness statement are true. I understand that proceedings for contempt of court may be brought against anyone who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

Signed: _____

Mindaugas Gaudiesius

Date: _____

Exhibits

- MG1 Site register photographs, 2 December 2025 to 6 February 2026
- MG2 Draft programme, BBC Cardiff L4 WC Remodel, 19 November 2025
- MG3 MSEM invoices 545 to 554
- MG4 Torin Construction bills, BBC Cardiff lines marked
- MG5 WhatsApp chat with Mr Davidans, 3 February to 12 July 2026, with translation
- MG6 O2 call records, calls to Mr Davidans only
- MG7 Email of 12 February 2026 15:11 and snagging list
- MG8 Emails of 19 and 23 February 2026
- MG9 My email of 18 March 2026 and the reply
- MG10 Rectification bills and proof of payment; Mr Pabis's timesheets, payslips and wage payments (bank details redacted)
- MG11 Emails of 24 November 2025 (pre-start meeting, start date, site managers) and 1 December 2025 (inductions, site contacts, site set-up delivery)
- MG12 Emails of 4 and 6 February 2026 (final site meeting on Thursday 12 February)
- MG13 Emails of 7 and 12 January 2026 (site management, Roath Lock foreman)
- MG14 Teams invitations of 13 February 2026

Notes for Minda on statement v0.8 (not part of the statement)

Prepared by Victoria, 2 Nov 2026. v0.8 is v0.7 changed by what the collected emails show. Nothing is signed, filed or sent. Not legal advice. Every [CONFIRM] note in the text must be answered and deleted before you sign.

Changed in v0.8 and why - **Para 3:** adds the 24 Nov 2025 email, which names you and Mikheil as site managers and gives 1 Dec as the start date (new MG11). Reason: MSEM holds the same email. - **Para 6:** the J4 "telephone, not in writing" sentence is replaced by the emails of 4 and 6 Feb (Newell to Macdonald; Macdonald to you; your "Yes, Thursday perfect") (new MG12). "Started on 1 December" is now supported by the 1 Dec inductions (MG11). The 9 Feb cancellation is not shown in any email. - **Para 7:** Bikovs. His own invoice emails put him on the Roath Lock kitchens every week; "Wednesday toilet refurbishment BBC central" is in his email of 17 Feb (the week to 15 Feb, so Wed 11 Feb) and "Monday BBC Central 5 hours overtime" is in his email of 24 Feb (week to 22 Feb, so Mon 16 Feb). That fits Mikheil's "Raitis around 10-11 Feb". Your £112.50 is the 16 Feb overtime. - **Para 9:** adds Liam Price's 7 Jan email and Macdonald's 12 Jan reply naming Starovoitov as Roath Lock foreman (new MG13). Mikheil's "about two weeks after start" is contradicted by the 7 Jan email. - **Para 15:** removes "where Sebastian Pabis was also working" (he was in Guernsey until 12 Feb: Premier Inn 29 Jan to 6 Feb, then the ferry booked 11 Feb, 12 Feb 08:15 to 15:45). - **Para 17:** adds the Teams invitation (sent 11:47, 14:00 to 14:30) (new MG14). - **Paras 19 and 21:** "around noon" removed. Mikheil's 12:57, 13:38 and 16:05 emails, Sebastian's parking from 13:00, and Pabis only reaching Cardiff after 12 Feb. - **Para 20:** two checks added from his phone bill (MD14): no call from his phone to yours or Andrejus's on 13 Feb; a call at 14:24 on 18 Feb. - **Para 9A (new, placeholder):** the 2 Feb site visit with Andrejus. You told me on 2 Nov that you and Andrejus visited the site on 2 Feb and drove up in NJ17CYK; the Radius tracker (about 08:00 to 15:00 on 2 Feb, back north 3 Feb) and Andrejus's Cardiff Travelodge for 2 Feb support it. The Chronology's "9 February" visit is probably this one. The paragraph has to be written from what you remember, so it is empty until you answer. - **Para 22:** asks whether documents were sent after 18 and 27 Mar.

Still open from v0.7: the 22 Nov 2025 advance of £3,000 (you must be able to swear to it); Rachel's £1,500 payment to Drulia on 2 May 2026; Kogut's confirmation (his own emails carry January dates); Alexey on the QuickBooks correction for Pabis; redacted payslips for MG10.

Not in this statement, on purpose: the 30 Jan meeting detail beyond para 10; any 9 Feb visit (none is documented; the visit was 2 Feb); the Chronology's "several calls"; anything on 8 Feb.

Exhibits to build: MG11 to MG14 are new (emails in the Central Square email file). MG1 to MG10 as before.

Earlier notes from v0.7 and before (kept for reference)

Prepared by Victoria, 27 Oct 2026; v0.7 on 2 Nov 2026 (para 23: Drulia's 12 February day is stated as not claimed). Filing version v0.6 (v0.5 with para 23 updated after Rachel's second AWT-1029 update: Pabis payslips and Drulia's advance). Nothing is signed, filed or sent. Not legal advice.

Changed in v0.5 (para 23): Mr Pabis is now stated as an employee on a fixed weekly wage, with his cost for 13 Feb to 1 Mar at £3,634.09 (wages £3,220.00 plus estimated employer NI £414.09), not £4,025.00 of bills. The total becomes £8,285.34. Source: Rachel's note "2026-10-27_Rachel-to-Victoria_AWT-1029_Pabis-employment-cost-basis-v2.md" (Drive 17ptJhxDT1xQYGdCXLHE3Cwl7ghewrdpP). His QuickBooks "bills" were timesheets entered in error, so they are not exhibited as invoices. Para 23 says nothing about the 2024-25 pay outside payroll (Rachel's point 4: you are putting it to Alexey at AGGA).

Figures now (v0.6): the whole window is evidenced at £8,381.94 (Snag Doctor 530.00; Kogut 1,400.00; Drulia 2,300.00; Pabis 3,730.69 = wages 3,220.00 + employer NI 414.10 + employer pension 96.59, confirmed from 7 payslips; Bikovs 112.50; Starovoitov 308.75). Drulia's w/e 15 Feb £690 is settled from the £3,000 advance paid 22 Nov 2025 (you confirmed he asked for it). Para 24 claims £7,997.25, which is £384.69 below the evidenced total, so the claim stands as it is.

Still to do before you sign: (a) you must be able to swear to the 22 Nov 2025 advance of £3,000 (Rachel's note, section 7); (b) Rachel's £1,500 payment to Drulia on 2 May 2026 (no bill, coded FC2602) is still unexplained: it is not in the statement, but MSEM may ask; (c) Mr Kogut's confirmation of his invoice; (d) Alexey's confirmation on the QuickBooks correction for Pabis, before disclosing; (e) your approval of the Pabis wording; (f) redacted payslips are in Raw (7 files) for MG10.

Changed in v0.4 (para 23): "all these bills have been paid" removed. QuickBooks proves £3,961.25 paid. Two items are open and marked [TO CONFIRM]: Pabis £4,025.00 (you say he was paid by salary; his bills are open in QuickBooks and he is charged at £280 a day, but his payroll net is about £525.47 a week, so the amount actually paid for 13 Feb to 1 Mar must be checked before you swear to £4,025.00) and Drulia £690.00 (you are checking the bank; Rachel saw an unlinked £1,500 payment on 2 May and a £1,250 "advance" with no record). Remove the brackets once confirmed.

Left out of this version (not confirmed, or not yours to say): 1. The 9 February visit (old para 8): you do not remember being there. The 9 February snagging meeting did not take place (para 6). The visit in your Chronology is not covered. 2. The Chronology's "several telephone discussions" of 2 to 6 February with you and Andrejus: your records do not support it. 3. Who attended the 12

February review, and Mr Davidans's presence on 12 February: you were not there and we do not have David Macdonald's WhatsApp messages for those dates. 4. The 3 February visit, until you tell me what happened. 5. Your offer to settle, and anything "without prejudice". 6. The "other recent weekend project in the building": no name or proof yet.

Check before you sign (each is a sentence you must be able to swear to): - Para 6: "started on site on 1 December 2025" (you said 1 Dec, then 2 Dec, then 1 Dec; the register photographs start on 2 Dec); and the exact day of J4 Projects's telephone call about the 9 February meeting (you remember only the week before handover). - Para 10: that the 30 January meeting happened (you were not there); the sentence rests on the Chronology. - Para 15: that Fishbone "arranged" Mr Drulia (who asked him is open). - Para 16: that the 12 February review happened as stated (from emails and WhatsApp messages). - Para 19: what Mr Drulia and Mr Pabis told you. They should confirm it in writing. - Para 21 and 23: the payment of each bill, with proof from Rachel (AWT-1029). - Para 23: Mr Kogut's corrected invoice or written confirmation.

Differences with your Chronology (sent to the court on 15 May) - It says you and Andrejus visited on 9 February. Here, nothing is said about a visit on 9 February; the snagging meeting planned for that day did not take place. - It says the handover inspection was on 12 February. Here too: the handover meeting was held on 12 February, a day before the planned 13 February. - It says Mr Davidans left after the 12 February inspection. Here: Mr Drulia and Mr Pabis told you he was on site on 13 February and left around noon. - It says he "ceased communication". Here: he messaged on 22 and 27 February about pay. Whether to correct the Chronology is for the court office or an adviser.